

SEPARATE OPINION OF Mr. CHENG TIEN-HSI.

I agree with the conclusion of the judgment to the effect that the Application of the Italian Government cannot be entertained, but regret that I am unable to agree with some of the reasons given in the judgment, which appear to me to be of sufficient importance and make me feel that I should set out briefly my own opinion.

In my opinion, the objection of the French Government based on the question of compulsory jurisdiction is valid only in so far as it relates to the part of the claim stated in submission (b) of the Application but invalid in so far as it relates to the part of the claim stated in submission (a); while as regards the latter submission, the objection based on want of diplomatic negotiation should be upheld.

So far as the decision of the Mines Department is concerned, it is right in holding that the dispute has arisen in regard to a fact anterior to the crucial date, because the decision was given in 1925. If it was wrongful, it was a wrong done in 1925. If it subsists, it subsists simply as an injury unredressed; but it does no new mischief, infringes no new right, and therefore gives rise to no new fact or situation. Considered as a wrong, it is not an existing fact, but entirely a thing of the past. The same applies to the alleged denial of justice, because it merely relates to an old dispute, that is, the decision of 1925. To be otherwise would result in the possibility of reviving any old dispute, merely by demanding a remedy of some sort with the confident expectation that it should be refused. But the same cannot apply to the question of the monopoly. For the monopoly, though instituted by the dahir of 1920, is still existing to-day. It is an existing fact or situation. If it is wrongful, it is wrongful not merely in its creation but in its continuance to the prejudice of those whose treaty rights are alleged to have been infringed, and this prejudice does not merely continue from an old existence but assumes a new existence every day, so long as the dahir that first created it remains in force. The case of the monopoly is not at all the same as the case where an injured party has not obtained satisfaction for an alleged injury, which would be a case like the decision of 1925; nor is it merely the consequences of an illicit act, which would mean that the wrong was completed once for all at a given moment, nor is it quite the same thing as the case of a continued unlawful occupation of another's property, because in

that case the violation of the owner's right took place at a definite date and the continued unlawful occupation is merely the prolonged violation of the same right of the same person, whereas the monopoly is capable of new infringements as long as it is in force. In other words, the interpretation thus placed on the words "situations or facts subsequent to this ratification" is not based on any conception of criminal law, but arrived at purely from the plain meaning of the said words themselves and from the special nature of the subject involved. It must be remembered that the material words of the French declaration are "situations or facts subsequent to this ratification", which does not mean quite the same thing as "situations or facts *created* after the ratification". Consequently a situation or fact existing after the crucial date is no less a situation or fact subsequent, although it may have existed also before that date. In order to hold that a certain situation or fact is not covered by the French declaration, it is therefore necessary to show that the situation or fact is anterior to the crucial date and not enough to say that it is a legal position resulting from the legislation of 1920 or that it cannot be considered separately from the legislation of which it is the result; for the essence of the dispute is a complaint against what the Applicant has repeatedly maintained to be the "continuing and permanent" state of things at variance with foreign rights, rather than the mere fact of its creation, and, if this were ignored, one might just as well take the dispute out of the French declaration on the ground that, in the last analysis, the dispute has arisen in regard to something which cannot be considered separately from the Act of Algéciras of 1906, which is even older in date than the dahir of 1920. For these reasons, I am of the opinion that the monopoly is not a situation or fact anterior to the crucial date and, in consequence, whatever may be the merits of the claim, the dispute concerning it is not outside the jurisdiction of the Court.

As to the other objection, my reasons are shortly as follows :

The Italian Government maintains that, although the word "monopolization" may not have been used in the course of the diplomatic negotiations before the institution of proceedings, what constitutes the elements of monopolization has been the subject of many representations made by interested parties, e.g., by MM. de Gennaro Musti and della Luccia; by the Italian Embassy, e.g., the *aide-mémoire* of June 14th, 1935; and by M. Montagna, Agent of the Italian Government. But while some of these representations, such as those made by MM. de Gennaro Musti and della Luccia, could hardly be considered as diplomatic negotiations, as they were not between States, all of them really concerned the Tassara claim; and if the question of monopolization was touched, it was touched only in reference to that claim. Even in the conversations which M. Montagna had with M. de Saint-Quentin—conversations the diplomatic character of which is disputed by the French Government—the subject of the monopoly was not really in dispute but was only referred to in connection with the Tassara claim, and was a question which the Italian Government did not then intend to raise. The fact that only the Tassara claim was in dispute seems clear from the following documents:

(1) The note of the Italian Embassy dated June 16th, 1933, announcing the intention of the Italian Government "to substitute itself for the company" and "to take up its cause in order by diplomatic means with the Government of the Republic to arrive at a solution of the dispute".

(2) The letter dated October 5th, 1934, of Baron Aloisi, saying: "as representations concerning the Company *Miniere e Fosfati* in Morocco have led to no result, the Italian Government is compelled to lay the dispute in question before the Permanent Court of International Justice at The Hague".

(3) The *aide-mémoire* of the Italian Embassy dated April 8th, 1935, mentioning that M. Montagna's mission was to arrive at an understanding on the Tassara question.

(4) The *mémoire* of January, 1935, submitted to M. Laval and the *aide-mémoire* of June 14th, 1935, submitted to the Quai d'Orsay, in both of which only the Tassara claim was really dealt with, while the question of "open door" was not raised but only might be raised as a contingency.

(5) The note dated March 27th, 1936, of the Italian Embassy, referring to the dispute concerning prospecting licences. It is true that it has been argued that the said note is full of inaccuracies; nevertheless it is hard to believe that this

official communication does not show what was really in dispute between the two Governments up to that moment.

It has been argued that, although throughout these conversations and negotiations the Royal Government in the most conciliatory spirit declared its intention not to raise the general question of France's whole phosphates policy in Morocco, if fair treatment were meted to its nationals who had suffered from that policy, the clearest warning was given. But warning is not the same thing as negotiation. It is the essence of negotiation to discuss some question with a view to settling it, whereas warning is merely the intimation of a will to do certain things (in this case to raise certain questions) on certain contingencies. In fact these conversations and *aide-mémoire* bring out clearly the point that the Tassara claim and the question of monopolization are really separate questions; for according to the conversations and *aide-mémoire*, if the Tassara claim were settled, the question of monopoly or monopolization could and would be left alone. It follows from this that the Tassara claim could hardly be said to be merely an element of the monopolization; for if it were so, it would have been more logical for the conversations and *aide-mémoire* to deal with the question of monopolization as the main issue, a successful settlement of which would automatically bring the Tassara claim to a satisfactory conclusion. It has also been argued that, even assuming that the general question was not discussed during the diplomatic conversations, "it is none the less true that during these conversations the dispute concerning the dispossession of Tassara and his associates contrary to international engagements was in fact examined, which was merely the central component element of the monopolization of Moroccan phosphates by the protecting Power". But to call the alleged dispossession of Tassara and his associates a component element of monopolization of Moroccan phosphates is to raise the very point that the French Government denies, and is an affirmation that needs to be proved. It has also been contended in effect that if representations have already been made by interested parties on the same point that the State intends to raise before the Court and discussions have taken place, a new discussion having the same purport through the diplomatic channel would be superfluous. But so far as the subject of monopolization is concerned, the question is not whether previous representations by interested parties may have the effect of relieving the State, in taking up the dispute, from the necessity of having a diplomatic negotiation on the same subject; but whether or not there has in fact been any real representation directly on the matter, and, in view of what has

been said above, it seems difficult to answer the question in the affirmative. For that reason the question of *non volumus* or *non possumus* does not really arise.

In view of the foregoing observations and of the fact that the necessity of diplomatic negotiations is admitted by the Italian Government, I am of the opinion that this condition has not been fulfilled, particularly as the subject of monopolization forms the principal claim of the Application.

(Signed) CHENG TIEN-HSI.